

Sundar Thakur v. Pashimanchal Vidyut Vitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 5 October 2020 · WRIT-C No. 15268 of 2020 · WRIT - C No. - 15268 of 2020 · **Writ disposed; liberty to apply under Clause 6.5.**

HEADNOTE

Where supply had been disconnected on a demand and the licensee undertook that the grievance would be examined under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the High Court disposed of the writ with liberty to apply under Clause 6.5 within a week, directing the designated officer to pass an appropriate order in accordance with law within three weeks after hearing the consumer.

FACTUAL SUMMARY

The petitioner's electricity connection was disconnected on 13 July 2020 on account of a demand. He approached the Allahabad High Court stating that he was ready to deposit the correct demand but the licensee, Pashimanchal Vidyut Vitran Nigam Limited, had taken no action despite request. Counsel for the respondents submitted that the grievance would be examined by respondent No. 2 under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and an appropriate order for deposit would be passed within two weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed demand after disconnection

HOLDING

The writ petition was disposed of with liberty to the petitioner to move an application before respondent No. 2 in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005 within a week; if so moved, respondent No. 2 shall pass an appropriate order in accordance with law within the next three weeks after affording reasonable opportunity of hearing. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Court did not decide the disputed demand on writ and relegated the consumer to a Clause 6.5 application, with a time-bound order after hearing. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Disconnection on a contested demand was left to the Clause 6.5 representation; the Court did not quantify the amount payable. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND AND LEGALITY OF THE 13.07.2020 DISCONNECTION

Writ disposed without examining the bill or disconnection on merits; relegated to Clause 6.5. ¶ 1